

HAMPTON v EAST BAY MUNICIPAL UTILITY DISTRICT, et al

22CV46329

DEFENDANT URBAN PARK'S MOTION FOR BIFURCATION OF LIABILITY

This matter involves personal injuries sustained by Plaintiff Maxwell Hampton ("Plaintiff") while swimming in Lake Comanche. Plaintiff generally alleges that while recreating along the south shore of the Camanche Dam and Reservoir ("Reservoir"), near the Arrowhead campground, he dove into the water from a rock wall and struck a submerged boulder, resulting in quadriplegia. Defendant East Bay Municipal Utility District ("EBMUD") owns and maintains the Reservoir. Defendant Urban Park Concessionaires ("UPC") has a contractual relationship with EBMUD to provide hospitality and resort management services at the Reservoir.

Now before the Court is UPC's motion to bifurcate.

I. Factual Background

The facts of this matter have been laid out in the Court's previous rulings in this case. In brief, this case arises from an accident that occurred on July 27, 2019. At that time, Plaintiff alleges that while recreating along the south shore of Lake Camanche, near the Arrowhead campground, he dove into the water from rock wall and struck submerged boulder, resulting in quadriplegia.

Various issues of material fact remain in contention. However, at the heart of the case and relevant to the instant motion, are questions as to UPC's role in placing the boulder in the water and maintaining the area, whether the boulder was open and obvious, and the degree of risk assumed by the Plaintiff.

II. Legal Standard and Discussion

Code Civ. Procedure section 598 provides, in relevant part:

The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order...that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case...

Under Code Civ. Proc. section 1048(b), the Court, “in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action . . . or of any separate issue or of any number of causes of action or issues.”

Trial courts have broad discretion to determine whether to bifurcate in the interests of judicial economy. (*Grappo v. Coventry Fin. Corp.* (1991) 235 Cal.App.3d 496, 504.) The objective of bifurcation “is avoidance of the waste of time and money caused by the unnecessary trial of damage questions in cases where the liability issue is resolved against the plaintiff.” (*Trickey v. Superior Court of Sacramento County* (1967) 252 Cal.App.2d.650, 653.)

III. DISCUSSION

Pursuant to CCP §§598 and 1048, UPC requests that the Court bifurcate the trial, with trial on the issue of liability separated from and preceding the trial on damages. UPC argues that bifurcation would promote judicial economy and efficiency of handling the litigation, serve the ends of justice, aid the convenience of witnesses, and potentially facilitate settlement. UPC asserts that its liability is “vigorously contested in this matter” and that it disputes liability on the grounds that either Plaintiff assumed the risk or was comparatively at fault. UPC argues that it will be unduly prejudiced, and the court’s time will be wasted, by allowing the introduction of substantial damages testimony before liability is determined.

In opposition, Plaintiff argues that bifurcation is improper in this case. Plaintiff points to the Court having already held that there is a triable issue of fact as to whether Plaintiff assumed the risk or whether there is comparative fault. Further, Plaintiff contends, bifurcation will result in inconvenience to witnesses and duplication of testimony. Plaintiff also asserts that the cause of his injuries is intertwined with liability and would result in duplicate testimony.

In reply, UPC reiterates its arguments and asserts that there is limited overlap between the witnesses that will be called for liability versus damages. However, also in reply, UPC acknowledges that there are at least ten (if not more) witnesses that will need to testify at both the liability phase and the damage phase. Plaintiff suggests that there are closer to eighteen overlapping witnesses, with a potential for at least six more witnesses who have yet to be deposed. (Declaration of David L. Winnett ("Winnett Decl.") ¶¶ 2, 4.)

UPC, as the moving party, bears the burden of showing that bifurcation is necessary and appropriate. (*Spectra-Physics Lasers, Inc. v. Uniphase Corp.* (N.D. Cal. 1992) 144 F.R.D. 99, 101; see also *Altangerel v. Martinez*, 2021 Cal.Super.LEXIS 77925, *3.) UPC has failed to do so here because it has not established that judicial economy will be served by bifurcation, nor that a joint trial will unduly prejudice UPC or that a bifurcated trial will not unduly prejudice Plaintiff.

California courts have recognized that bifurcation is proper where liability is a simple matter while damages require testimony from multiple witnesses, or where only a small fraction of the evidence would be repeated, and the trial court had determined the ends of justice would be served by bifurcation. (*Altangerel*, supra [citing *Trickey*, supra at 653].)

Here the question of liability is not simple and in fact has been the subject of multiple motions before this Court. There are multiple overlapping witnesses to both the liability issue and the issue of damages and there is likely to be significant overlap in witness testimony. UPC has not carried its burden to show that calling two separate trials, with two different juries, that will inconvenience multiple witnesses is not a good use of judicial resources. The Court recognizes that UPC is hesitant to allow testimony related to the severity of Plaintiff's injuries because it is possible that a jury would be prejudiced in Plaintiff's favor based on sympathy. However, any potential prejudice can be mitigated at trial with a jury instruction that the jurors are not to be swayed by sympathy or feelings. (*People v. Lanphear* (1984) 36 Cal.3d 163, 165.)

The Court finds that bifurcation of trial in two phases would not promote the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the trial. Accordingly, the motion is **DENIED**.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Order in compliance with Rule of Court 3.1312 in conformity with this Ruling.

NELSON v BROWN, et al

25CV47918

DEFENDANT’S MOTION TO SET ASIDE DEFAULT

This is an action arising out of the alleged theft of the personal property of Plaintiff Curtis P. Nelson (“Plaintiff”) by Defendants Grant F. Brown (“Brown”) and Michael J. Cooley (“Cooley.”)

Now before the Court is Defendant Brown’s Motion to Set Aside Default.

I. RELEVANT PROCEDURAL HISTORY

On February 28, 2025, Plaintiff filed a complaint against Defendants. Plaintiff filed a proof of service showing that Brown had been personally served on April 21, 2025. On June 30, 2025, the Court entered a judgment after default awarding Plaintiff a total judgment of \$22,050.00.

Brown filed his motion for relief from default on July 2, 2025.

II. Legal Standard and Analysis

Code Civil Procedure section 473(d) authorizes the Court to vacate a judgment that is void while section 473(b) permits the Court to set aside a judgment entered because of mistake, inadvertence, surprise, or excusable neglect. Because courts favor resolution on the merits, “when a party in default moves promptly to seek relief, very slight evidence is required to justify a trial court's order setting aside a default.” (*Shamblin v. Brattain* (1988) 44 Cal.3d 474, 478-479 [citation omitted].)

Brown moves for relief on two grounds. First, Brown states that his co-Defendant was shot in the face and has been hospitalized; however, it is unclear if Mr. Brown was also injured and hospitalized raising questions as to whether this is an appropriate basis for relief. Brown also states that he believed that he could provide a response to the Complaint at the Case Management Conference on July 2, 2025, and did not realize he needed to Answer before that.